

paragraph (c) thereof, after the words "nineteen hundred and thirty-five" there were inserted the words "or nineteen hundred and thirty-six".

Short title.

2. This Act may be cited as the British Shipping (Continuance of Subsidy) Act, 1936, and this Act and the principal Act may be cited together as the British Shipping (Assistance) Acts, 1935 and 1936.

CHAPTER 13.

An Act to include employment in agriculture among the employments which are insurable under the Unemployment Insurance Act, 1935, and to make modifications in the provisions of that Act in their application to such employment, and other consequential modifications in those provisions. [9th April 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Employ-
ment in
agriculture
to be
insurable
employ-
ment.
25 & 26
Geo. 5. c. 8.

1.—(1) Subject to the provisions of this Act every employment in agriculture that is an employment specified in Part I of the First Schedule to the Unemployment Insurance Act, 1935 (hereinafter referred to as "the principal Act"), shall be an insurable employment for the purposes of that Act unless it is an excepted employment, and Part II of the said Schedule (which contains the general list of excepted employments) shall have effect as if paragraph 1 were omitted therefrom and as if there were included therein the employments specified in the First Schedule to this Act.

(2) The power of the Minister to make regulations under the principal Act shall include power by such regulations made with the consent of the Treasury to provide, either generally or in such circumstances or in

such areas as may be specified in the regulations, and either unconditionally or subject to such conditions as may be so specified, that where manual labour in agriculture is performed in Great Britain under a contract for the performance of such labour for the purposes of any trade or business, the performance thereof shall be deemed to be insurable employment in agriculture, notwithstanding that it is not an employment specified in Part I of the First Schedule to the principal Act, and such regulations may, in relation to the performance of labour which under the regulations is to be deemed to be insurable employment in agriculture, and in relation to persons performing such labour, make provision as to the manner in which and the periods for which contributions are to be paid, as to the manner in which claims for benefit are to be made, and as to the circumstances in which such persons are to be deemed to be unemployed, and where, in accordance with such regulations, the performance of such labour as aforesaid is deemed to be insurable employment in agriculture, the person for the purposes of whose trade or business the labour is performed shall, in relation to the person performing the labour, be deemed to be the employer of that person for the purposes of the principal Act.

2. The weekly contributions payable in respect of employment in agriculture shall be at the respective rates set out in the Second Schedule to this Act; and accordingly section eight of the principal Act (which relates to the liability of employers and employed persons for contributions) and subsection (2) of section twenty-one of the principal Act (which relates to the method of calculating contributions out of moneys provided by Parliament) shall, in their application to persons employed in agriculture, have effect as if for the references therein to the Third Schedule to that Act there were substituted references to the Second Schedule to this Act.

3.—(1) Benefit in respect of agricultural contributions shall be at the respective weekly rates set out in the Third Schedule to this Act; and accordingly section thirty-six of the principal Act (which relates to ordinary rates of benefit) shall, in its application to agricultural benefit, have effect as if for the reference therein to the Fourth Schedule to that Act there were substituted a reference to the Third Schedule to this Act.

Reduced rates of contribution in respect of persons employed in agriculture.

Rates of benefit in respect of agricultural contributions.

(2) Sections thirty-eight and thirty-nine of the principal Act (which relate to increase of benefit in respect of adult dependants) shall, in their application to agricultural benefit, be subject to the following modifications, that is to say—

- (a) subsection (1) of the said section thirty-eight shall have effect as if for the words “nine shillings” in both places where those words occur there were therein substituted the words “seven shillings”;
- (b) the said section thirty-nine shall have effect as if at the end thereof there were inserted the following subsection:—

“(4) Where the weekly rate of agricultural benefit increased under the last two foregoing sections would exceed thirty shillings the rate of benefit payable to the agricultural contributor shall be reduced by an amount equal to the excess.”

Modifica-
tion of first
statutory
condition in
the case of
agricultural
benefit.

4.—(1) Section twenty-two of the principal Act (which relates to the first statutory condition for the receipt of benefit) shall, in its application to agricultural benefit, have effect as if for subsection (1) thereof there were therein substituted the following subsection:—

“(1) The first statutory condition for the receipt of agricultural benefit by an agricultural contributor is that he proves that not less than twenty agricultural contributions have been paid in respect of him as an agricultural contributor in respect of the two years immediately preceding the date on which a claim for agricultural benefit is made.”

(2) Subsection (5) of section seventy-five of the principal Act (which relates to the reckoning of credited contributions for the purposes of the first statutory condition) shall have effect as if there were inserted at the end thereof the words following:—

“; and

(e) in the case of a claim for agricultural benefit by an agricultural contributor not more than ten credited contributions shall be taken into account for the purposes of paragraph (a) and of paragraph (d) of this subsection.”

5. An agricultural contributor shall not be entitled to make application for agricultural benefit before the twenty-ninth day of October, nineteen hundred and thirty-six, or to receive benefit in respect of agricultural contributions in respect of any day before the fifth day of November, nineteen hundred and thirty-six, but on and after the said fifth day of November section thirty-one of the principal Act (which relates to the right to benefit and the periods in respect of which it is payable) shall, in its application to agricultural benefit, have effect as if for subsection (1) thereof there were therein substituted the following subsection :—

Right to agricultural benefit and periods in respect to which it is payable.

“(1) An agricultural contributor who has attained the age of sixteen years and is unemployed shall, if he proves that the statutory conditions are fulfilled in his case, and if he is not disqualified under this Act for the receipt of benefit, be entitled, subject to the provisions of this Act, to receive in a benefit year agricultural benefit in respect of periods not exceeding in the aggregate—

(a) twelve days for the first ten agricultural contributions standing to his credit at the beginning of the benefit year; and

(b) three further days for every agricultural contribution so standing to his credit in addition to the said ten :

Provided that he shall not be entitled to receive in any benefit year agricultural benefit in respect of periods exceeding in the aggregate three hundred days ”;

and as if subsections (2) and (3) were omitted therefrom, and as if in subsection (5) thereof there were substituted for the reference to the last three foregoing subsections a reference to subsections (1) and (4) of the said section.

6.—(1) In reckoning the number of agricultural contributions standing to the credit of an agricultural contributor at the beginning of any benefit year, agricultural benefit shall be deemed to have been paid in respect of a contribution at the rate of five-sixths of a contribution for each of the first twelve days' agricultural benefit paid to him in any benefit year and at the rate of one-third of a contribution for each further day's agricultural benefit paid to him in that benefit year, and the

Reckoning of agricultural contributions.

number of contributions in respect of which, as so reckoned, no agricultural benefit has been paid (including any fraction of a contribution) shall be taken to be the number of contributions standing to his credit.

(2) If at any time a period of five consecutive insurance years has elapsed without agricultural contributions being paid in respect of any person as an insured contributor, then, except during the remainder of a benefit year in which that period was completed, no agricultural contributions paid in respect of him before the beginning of that period of five consecutive insurance years shall be taken into account for any of the purposes of the principal Act, but upon agricultural contributions being again paid in respect of him as an insured contributor he shall be treated for the purposes of the principal Act as if he had then first become an agricultural contributor.

(3) The power of the Minister to make regulations under section thirty-three of the principal Act for the purposes of sections thirty-one and thirty-two of that Act shall include power to make regulations* for the purposes of this section.

Provisions
as to
Unemploy-
ment Fund.

7.—(1) The accounts of the Unemployment Fund shall be so kept as to show in a separate account, to be called the "Agricultural Account" of the Unemployment Fund, such amounts as may be determined by the Minister with the concurrence of the Treasury to be approximately equivalent to—

- (a) the contributions paid into the fund by employers and employed persons and out of moneys provided by Parliament in respect of persons employed in agriculture;
- (b) the agricultural benefit payable out of the fund;
- (c) any other receipts into or payments out of, the fund (including any receipts or payments in respect of administrative expenses) which in the opinion of the Minister and of the Treasury are properly attributable to the insurance of persons employed in agriculture under the principal Act.

(2) The account of the Unemployment Fund showing matters other than those shown in the agricultural account shall be called the "General Account" of the Unemployment Fund.

(3) Where it appears to the Minister that any payments into or out of the Unemployment Fund require to be apportioned between the general account and the agricultural account, the apportionment shall be made by the Minister with the concurrence of the Treasury.

(4) If at any time the amount standing to the credit either of the general account of the Unemployment Fund or of the agricultural account of that fund is insufficient to discharge the liabilities falling to be charged to that account, the Minister shall forthwith report the fact to the Unemployment Insurance Statutory Committee and there shall be charged to the account in deficiency and credited to the account not in deficiency such sums by way of interest on the amount of the deficiency as may be determined by the Minister with the concurrence of the Treasury.

8.—(1) The functions of the Unemployment Insurance Statutory Committee under section fifty-nine of the principal Act (which relates to reports on the financial condition of the Unemployment Fund) shall be exercised separately with regard to the general account of the Unemployment Fund and with regard to the agricultural account of that fund.

Reports of
Unemploy-
ment
Insurance
Statutory
Committee
as to
Unemploy-
ment Fund.

(2) The Fifth Schedule to the principal Act (which contains a list of the provisions of that Act of which amendments may be recommended by the Committee) shall have effect as if the provisions of this Act specified in the Fourth Schedule to this Act were included in the said Fifth Schedule.

(3) The power of the Committee under subsection (2) of the said section to make recommendations for the application of any sum towards the discharge of the liabilities mentioned in subsection (2) of section sixty of the principal Act shall extend only to the making of recommendations for the application towards the discharge of those liabilities of sums standing to the credit of the general account of the Unemployment Fund.

9. Section sixty-two of the principal Act (which provides for contributions out of the Unemployment Fund to the expenses of Government Departments) shall

Contribu-
tions out of
Unemploy-
ment Fund

to expenses of Government Departments. have effect as if for subsection (1) thereof there were substituted the following subsection :—

“(1) There shall in each year be paid to the Treasury out of the Unemployment Fund at such times and in such manner as the Treasury may direct such sums as the Minister may estimate in accordance with directions given by the Treasury to be the amount of the expenses of any Government Department which are determined in accordance with such directions to be attributable to the exercise of any functions performed in connection with the insurance of employed persons against unemployment in manner provided by this Act; and the sums so payable shall be apportioned by the Minister with the concurrence of the Treasury between the general account and the agricultural account of the fund :

Provided that the sums paid under this subsection in any year out of the general account and out of the agricultural account of the fund respectively shall not exceed one-eighth of the receipts on account of income credited to that account after deducting, so long as regulations made under this Act provide for the payment of contributions by means of unemployment insurance stamps, any sums which have been refunded on account of any such stamps or on account of contributions paid (whether by stamps or otherwise) in respect of a person under the erroneous belief that the contributions were payable in respect of him under this Act.”

Regulations as to yearly and half-yearly hirings.

10.—(1) The Minister may, by regulations under the principal Act, make provision that where a contract is made for the employment of any person in agriculture for a period of yearly or half-yearly hiring then, if, in the prescribed manner, it is proved—

- (a) not later than twenty-eight days after the beginning of the period of yearly or half-yearly hiring that the contract has been made; and
- (b) within the prescribed time after the expiration of the period of yearly or half-yearly hiring, that the employment has continued, and that agricultural contributions have been duly paid in respect thereof, throughout that period;

the employer and the employed person shall each be entitled, on making application in the prescribed manner and within the prescribed time, to have repaid to him the appropriate proportion of the agricultural contributions paid by him in respect of the employed person during the period of yearly or half-yearly hiring; so, however, that such regulations may provide, in the case of agricultural contributions paid by an employer on behalf of a person employed by him and not recovered from that person, for the repayment under this section being made to the employer instead of to that person.

(2) For the purposes of this section the expression—

“Period of yearly hiring” means a period of not less than fifty consecutive weeks;

“Period of half-yearly hiring” means a period of less than fifty but not less than twenty-one consecutive weeks;

“Appropriate proportion” means in the case of a period of yearly hiring twenty-five per cent., and in the case of a period of half-yearly hiring twelve and one-half per cent.

(3) In calculating the amount of any repayment to be made in accordance with the regulations made for the purposes of this section, fractions of a penny shall be disregarded.

(4) The amount of the repayments made in any year in accordance with regulations made for the purposes of this section shall be deducted—

(a) for the purpose of calculating contributions to be made out of moneys to be provided by Parliament under section twenty-one of the principal Act, from the contributions paid in that year in respect of employed persons; and

(b) for the purpose of calculating the limitation upon the sums payable out of the Unemployment Fund in respect of the expenses of Government Departments under section sixty-two of the principal Act, from the receipts on account of income credited to the agricultural account of that Fund.

Regulations
as to
persons
who are
insured con-
tributors
both in
respect
of employ-
ment in
agriculture
and other-
wise.

11.—(1) The Minister may make regulations under the principal Act as to persons who are insured contributors both in respect of employment in agriculture and otherwise and, subject to the provisions of this section, such regulations may modify the provisions of the principal Act in such manner as the Minister thinks proper for the purpose of making necessary adjustments in the operation of the principal Act with respect to such persons.

(2) Any such regulations shall contain provisions securing—

- (a) that when an insured contributor has begun a benefit year (whether as an agricultural contributor or otherwise) then, until the expiration of a period of twelve months from the beginning of that benefit year, no other benefit year shall begin in his case notwithstanding that he may during that benefit year prove the matters specified in subsection (1) of section thirty-two of the principal Act;
- (b) that an insured contributor who at the beginning of his benefit year has proved that the first statutory condition for the receipt of agricultural benefit by an agricultural contributor is fulfilled in his case shall, if during that benefit year he proves that the first statutory condition for the receipt of benefit by an insured contributor other than an agricultural contributor is fulfilled in his case, be entitled, subject to the provisions of the principal Act, to receive benefit at the rates provided by the principal Act with respect to benefit other than agricultural benefit;
- (c) that an insured contributor who at the beginning of his benefit year has proved that the first statutory condition for the receipt of benefit other than agricultural benefit by an insured contributor other than an agricultural contributor, is fulfilled in his case shall, if during that benefit year he proves that the first statutory condition for the receipt of agricultural benefit by an agricultural contributor is fulfilled in his case, be entitled, subject to the provisions of the principal Act, to receive benefit at the rates

provided by the principal Act with respect to agricultural benefit;

- (d) that no insured contributor shall be entitled to receive benefit at both the rates aforesaid in respect of the same day but that benefit shall be paid to any such insured contributor who is entitled to receive benefit at the highest rate to which he is for the time being entitled.

12. The amendments specified in the second column of the Fifth Schedule to this Act (which relate to consequential matters and matters of minor detail) shall be made in the provisions of the principal Act specified in the first column of that Schedule.

Consequential and minor amendments of principal Act.

13. As soon as may be after the passing of this Act, the Minister shall consult with the Postmaster General and, subject to his concurrence, shall make regulations under the principal Act so far as it appears to them to be practicable and reasonable for the purpose of enabling persons residing in rural areas to make claims for, and to obtain payment of, agricultural benefit at a post office within a reasonable distance of the place where they reside.

Payment of agricultural benefit through Post Office.

14.—(1) As soon as may be after the passing of this Act, the Minister shall refer to the Unemployment Insurance Statutory Committee the question whether it is desirable and practicable to include employment as a private gardener among insurable employments, and the Committee, after giving such notice as they consider sufficient of their intention to inquire into that question, and after taking into consideration any representations submitted to them by persons appearing to them to represent persons employed in that employment and the employers of such persons, shall make a report to the Minister thereon.

Power to provide for insurance of private gardeners.

(2) The Minister shall lay the report of the Committee before Parliament and if, after considering the report, the Minister is of opinion that it is desirable to amend this Act for the purpose of including any class of employment as a private gardener among insurable employments as employment in agriculture, he may, with the consent of the Treasury, lay before Parliament

the draft of an Order making such amendments of this Act for that purpose as he thinks fit.

(3) If each House resolves that the draft of an Order laid before it under this section be approved, the Minister shall make an Order in the terms of the draft to take effect on such date as may be specified in the Order, and as from that date the provisions of this Act shall have effect subject to the provisions of the Order.

Payments
out of
moneys pro-
vided by
Parliament.

15. Any increase attributable to the passing of this Act in the sums payable out of moneys provided by Parliament by virtue of sections twenty-one, ninety-four or ninety-five of the principal Act shall be defrayed out of moneys provided by Parliament.

Interpreta-
tion.

16.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say,—

“Agriculture” includes horticulture and forestry;

“Agricultural benefit” means benefit at the weekly rates set out in the Third Schedule to this Act, and includes any increase in the said rates payable under sections thirty-seven or thirty-eight of the principal Act;

“Agricultural contributions” means contributions paid in respect of employment in agriculture; and

“Agricultural contributor” means an insured contributor insured under the principal Act in respect of employment in agriculture;

“Private gardener” means a person employed in horticulture otherwise than in any trade or business carried on for the purposes of gain, not being a person so employed by a public or local authority, or a society, institution, association, club, or company (whether incorporated or not).

(2) Except where the context otherwise requires, references in this Act to the principal Act or to any provision thereof shall be construed as references to that

Act or provision as amended by this Act, and in the principal Act the expression "this Act" shall mean the principal Act as so amended.

17.—(1) This Act may be cited as the Unemployment Insurance (Agriculture) Act, 1936, and this Act and the Unemployment Insurance Act, 1935, may be cited together as the Unemployment Insurance Acts, 1935 and 1936.

Short title,
citation,
extent,
saving,
commence-
ment
and repeal.

(2) Save in so far as it affects provisions of the principal Act which extend to Northern Ireland, this Act shall not extend to Northern Ireland.

(3) Nothing in this Act shall affect the operation of Part III of the Unemployment Act, 1934.

24 & 25
Geo. 5. c. 29.

(4) This Act shall come into operation on the fourth day of May, nineteen hundred and thirty-six.

(5) Paragraph 1 of Part II of the First Schedule to the principal Act is hereby repealed.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

PROVISIONS AS TO EXCEPTED EMPLOYMENTS.

1. Employment in agriculture in the service of a person to whom the employed person bears any of the following relationships, that is to say, son, stepson, adopted son, son's wife, stepson's wife, adopted son's wife, daughter, stepdaughter, adopted daughter, daughter's husband, stepdaughter's husband, adopted daughter's husband, mother, stepmother, father, stepfather, adopter, grandparent or grandchild.

2. Employment as a private gardener.

Section 2.

SECOND SCHEDULE.

WEEKLY RATES OF AGRICULTURAL CONTRIBUTIONS
PAYABLE BY EMPLOYERS AND EMPLOYED PERSONS.

Class of employed person to whom rate applies.	Weekly rate of contribution.	
	By the employed person.	By the employer.
Men who have attained the age of 21 years -	d. 4½	d. 4½
Women who have attained the age of 21 years -	4	4
Young men between the ages of 18 and 21 years - - - - -	4	4
Young women between the ages of 18 and 21 years - - - - -	3½	3½
Boys between the ages of 16 and 18 years -	2	2
Girls between the ages of 16 and 18 years -	1½	1½
Boys who have not attained the age of 16 years - - - - -	1½	1½
Girls who have not attained the age of 16 years - - - - -	1	1

Sections 3,
16.

THIRD SCHEDULE.

WEEKLY RATES OF AGRICULTURAL BENEFIT.

Class of agricultural contributor.	Rate of benefit.
	s. d.
Men who have attained the age of 21 years -	14 0
Women who have attained the age of 21 years -	12 6
Young men between the ages of 18 and 21 years -	10 6
Young women between the ages of 18 and 21 years -	9 6
Boys between the ages of 17 and 18 years -	6 0
Girls between the ages of 17 and 18 years -	5 0
Boys who have not attained the age of 17 years -	4 0
Girls who have not attained the age of 17 years -	3 6

FOURTH SCHEDULE.

Section 8.

PROVISIONS OF ACT OF WHICH AMENDMENTS MAY
BE RECOMMENDED BY THE UNEMPLOYMENT
INSURANCE STATUTORY COMMITTEE.

Provision.	Subject Matter.
Section three -	- Rates of benefit in the case of agricultural contributors.
Section six -	- Reckoning of agricultural contributions.
Section ten -	- Regulations as to yearly and half-yearly hirings.
Section eleven	- Regulations as to persons who are insured contributors both in respect of employment in agriculture and otherwise.
Second Schedule	- Weekly rates of agricultural contributions payable by employers and employed persons.
Third Schedule	- Weekly rates of agricultural benefit.

FIFTH SCHEDULE.

Section 12.

CONSEQUENTIAL AND MINOR AMENDMENTS OF
PRINCIPAL ACT.

Provision to be amended.	Amendments.
Section three	- In subsection (3) there shall be inserted after paragraph (c) thereof the words following— “ and (d) for permitting persons who are employed under the same employer partly in agriculture and partly in some other insurable employment to be treated for the purposes of this Act, with the

5TH SCH.
—cont.Provision
to be amended.

Amendments.

Section three—*cont.*

consent of the employed persons, as if they were wholly employed in agriculture, or, with the consent of the employer, as if they were wholly employed in insurable employment other than in agriculture;” and after subsection (4) there shall be inserted the following subsections:—

“(5) Where it appears to the Minister that the terms and conditions of service of, and the nature of the work performed by, any class of persons employed in agriculture are so similar to the terms and conditions of service of, and the nature of the work performed by, a class of persons employed in other insurable employment as to result in anomalies in the operation of this Act, the Minister may, by regulations made with the consent of the Treasury, either unconditionally or subject to such conditions as may be specified in the regulations, either—

(a) provide for including the class of persons employed in other insurable employment among the classes of persons employed in agriculture; or

(b) provide for including the class of persons employed in agriculture among the classes of persons employed in other insurable employment.

“(6) Where an employed person was in any calendar week employed partly in agriculture and partly in other insurable employment then, subject to the provisions of any regulations made under paragraph (a) of subsection (3) of this section—

(a) if he was employed in agriculture to a greater extent than in other insurable employment he shall be deemed to have been in that week wholly employed in agriculture;

Provision
to be amended.

Amendments.

5TH SCH.
—cont.Section three—*cont.*

- (b) if he was employed in other insurable employment to a greater extent than in agriculture, he shall be deemed to have been in that week wholly employed in other insurable employment :

Provided that in the case of an employed person who was in any calendar week employed in insurable employment by more than one person, this subsection shall apply as if he had not in that week been employed in any employment other than that in which he was employed by the person who, in accordance with the provisions of section eleven of this Act, is deemed to be his employer.

(7) The Minister may, by regulations made with the consent of the Treasury, provide that in the case of any person employed in any class of employment in agriculture specified in regulations made by the Minister or in a special order made under the National Health Insurance Acts, 1924 to 1935, and declared by the Minister to apply for the purposes of this Act as being of such a nature that it is ordinarily adopted as subsidiary employment only and not as the principal means of livelihood, if that person proves in the prescribed manner either—

- (a) that his employment in such classes of employment is not by way of subsidiary employment and is his principal means of livelihood ; or
(b) that he is normally employed in insurable employment or in such employment as would make him an employed person within the meaning of the enactments relating to unemployment insurance in Northern Ireland ;

his employment in such classes of employment as aforesaid shall, subject to such conditions, if any, as may be prescribed by the regulations, be deemed not to be an excepted employment."

5TH SCH.
—cont.

Provision to be amended.	Amendments.
Section four -	- In subsection (1) there shall be inserted after paragraph (b) thereof the words following— “ or (c) as to whether any employment or any class of employment is or will be employment in agriculture or as to whether a person is or was employed in agriculture.” In subsection (2) thereof after the word “employment” there shall be inserted the words “or is or was employment in agriculture”.
Section five -	- At the end thereof there shall be inserted the following subsection :— “(5) the following persons shall not be insured under this Act in respect of employment in agriculture, that is to say— “(a) persons not domiciled in the United Kingdom who are ordinarily resident outside the United Kingdom; “(b) persons who are, to such extent and in such circumstances as may be prescribed, ordinarily dependent for their livelihood on occupations in agriculture that are not insurable employment; and if any question arises as to whether any person is by virtue of this subsection not insured in respect of employment in agriculture, the question shall be decided by the Minister subject to the provisions of section eighty-four of this Act.”
Section eleven	- In subsection (2) in paragraph (a) thereof after the word “workshop” there shall be inserted the words “or the occupier or manager of a farm”.
Section twenty-two	In subsection (1) thereof after the word “benefit”, where that word first occurs, there shall be inserted the words “other

Provision to be amended.	Amendments.	5TH SCH. —cont.
Section twenty-two —cont.	than agricultural benefit ” and after the word “ contributions ” there shall be inserted the words “ other than agricultural contributions.”	
Section twenty-six	In subsection (1) thereof for the words “ or other premises ” there shall be substituted the words “ farm or other premises or place ” and there shall be inserted in proviso (b) to that subsection after the word “ premises ” the words “ or place.” In subsection (2) thereof after the word “ premises ”, where that word occurs for the first time, there shall be inserted the words “ or separate places ”, after the word “ premises ”, where that word occurs for the second time, there shall be inserted the words “ or at the same place ”, after the word “ workshop ” there shall be inserted the words “ or farm ”, and after the word “ premises ”, where that word occurs for the third time, there shall be inserted the words “ or a separate place ”.	
Section thirty-two	In subsection (1) there shall be inserted in paragraph (a) thereof after the word “ case ” the words “ and where that condition is fulfilled only as modified in its application to agricultural benefit that there are at least ten agricultural contributions standing to his credit ”.	
Section sixty-five	In paragraph (a) of subsection (1) after the word “ workshop ” there shall be inserted the words “ or a house in which agricultural operations are carried on ”.	
Section seventy	At the end thereof there shall be inserted the following subsection :— “ (3) For the purpose of determining in relation to persons employed in insurable employment in agriculture the excess which must be payable under the rules of an association in order to enable a special arrangement with the	

5TH SCH.
—cont.Provision
to be amended.

Amendments.

Section seventy—cont. association to be made or continued, subsection (1) of this section shall have effect as if the amounts mentioned in paragraph (a) and paragraph (b) thereof were reduced by one-half.”

Section seventy-five - After subsection (6) there shall be inserted the following subsection :—

“(7) The Minister shall, after consultation with the Board of Education and the Scottish Education Department, and with the approval of the Treasury, provide by regulations for enabling credited contributions to be treated as agricultural contributions or as contributions other than agricultural contributions, and shall by such regulations make provision, in relation to purposes other than that of determining whether the first statutory condition is fulfilled, as to the period during which credited contributions that are treated as agricultural contributions are to be deemed to have been paid in respect of the person credited with them, as to that person being deemed to have been *bonâ fide* employed during that period, and as to the disregarding of contributions actually paid in respect of him before the end of that period.”

Section eighty-five - In subsection (1) after the word “person” (where that word occurs for the second time) there shall be inserted the words “or is or was employed in agriculture.”

Section ninety-five - After subsection (3) there shall be inserted the following subsection :—

“(4) A person who, before his training, or before the date on which he was called out for or into service, embodied, taken into employment, given a commission or warrant, engaged or enlisted, as the case may be, was normally a person employed in agriculture, shall in respect

Provision to be amended.	Amendments.	5TH SCH. —cont.
Section ninety-five —cont.	of any period during which he is under this section deemed to be an employed person in the service of the Crown, be treated as if he had been so employed in agriculture during that period."	
First Schedule	In paragraph 2 of Part II thereof, after the word "employed" (where that word occurs for the second time), there shall be inserted the words "in horticulture or".	

CHAPTER 14.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army and the Air Force. [30th April 1936.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and fifty-eight thousand four hundred, including those to be employed at the depots in the United Kingdom for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions, other than Aden :

And whereas under the Air Force (Constitution) Act, 1917, His Majesty is entitled to raise and maintain the air force, and it is judged necessary that the whole number of such force should consist of fifty thousand, including those employed as aforesaid, but exclusive of the numbers serving as aforesaid :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the